



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 2, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202101747 regarding Police Officer Joseph Sorrentino, Tax No. 957890 (DADS No. 2022-26852), and Sergeant Jonathan Grajales, Tax No. 952807 (DADS No. 2022-26851)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officer Sorrentino and Sergeant Grajales do not rise to the level of actionable misconduct. Both Police Officer Sorrentino and Sergeant Grajales were faced with a chaotic situation where the driver of a fleeing vehicle refused to follow officers' lawful orders and refused to exit the vehicle. The situation became even more dangerous for everyone on the scene when the male operator of the vehicle used a toddler as a human shield to prevent Officer Sorrentino from detaining him.

The interaction between the officers and the vehicle's occupants was captured by numerous Body-Worn Cameras ("BWC"). These BWC videos all depict a violent struggle to detain the vehicle's occupants and operator while preventing any harm from coming to the toddler. Thus, in light of the callous actions by the vehicle's occupants—particularly the

active physical resistance exhibited by the vehicle's operator—the actions and statements of Police Officer Sorrentino and Sergeant Grajales are not actionable misconduct.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Sorrentino and Sergeant Grajales will receive no disciplinary action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a long horizontal stroke extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office